
America built a surveillance state out of fear and never left it

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America built a surveillance state out of fear and never left it

During Friday's 9/11 commemorations, it was startling to realize that one-third of the American population today wasn't born when it happened. To those of us of an older vintage, Sept. 11, 2001, seems like it was yesterday. The terrorist attacks at the hands of Osama bin Laden and al-Qaida, which killed nearly 3,000 people, leveled the World Trade Center and damaged the Pentagon, [marked a turning point in our history](#). Whatever sense of invulnerability America may have had as the world's only superpower was shattered, and it precipitated massive changes in the way we lived, traveled and perceived ourselves. We started what was quickly named the global "war on terror," and our president, George W. Bush, proclaimed that the rest of the world was either with us or they were with the terrorists.

Sept. 11 was a politically unifying event at first, as wars tend to be. On the evening of the attack, members of Congress and senators of both parties came together on the steps of the Capitol to sing "God Bless America," and within days they approved the broad, vaguely defined Authorization for Use of Military Force that remains in effect today, giving the green light to every military action that has taken place since. Former Rep. Barbara Lee, D-Calif., who now serves as the mayor of Oakland, cast the only dissenting vote.

Across the nation, anti-Muslim fervor was so strong that Bush was compelled to explain to the American people that freedom of religion was still in the Bill of Rights. Nearly a week after Sept. 11, he took the extraordinary step — unthinkable for Donald Trump — of [visiting a mosque](#) and exhorting people to not use violence. Nonetheless, civilians and [law enforcement](#) committed thousands of acts of bigotry against people they perceived as being "Middle Eastern." The bloodlust was thick.

There was little room for dissent. In the first years, those who dared to object to the war or express criticism of American policy were shut down immediately. It wasn't until Bush decided to extend the war in Afghanistan to Iraq that normal political discourse returned, and even then it was tempered by a mainstream media so closely aligned with the administration that dissent wasn't easy to be heard.

Congress formed a 9/11 commission to find out what had gone wrong. Three years after the event, that body produced a report finding, among other things, that the government had received warnings, but the various departments had not communicated adequately with one another. (The commission also revealed that Bush himself had been warned personally in a [memo](#) dated Aug. 6 that read, "Bin Laden determined to attack inside the United States." He reportedly [told](#) the briefer, "All right. You've covered your a*s now.")

But it had already been decided that the intelligence community was in need of an overhaul, and Congress created a massive new domestic law enforcement agency they called the Department of Homeland Security, a move that caught the attention of [civil libertarians](#) and small government-types alike.

Until the Bush administration started using it, no president had referred to America as a "homeland;" they called it a republic or the nation. Even some conservative boosters of Bush's policies believed it was un-American.

The name alone sent chills down the spine. A chilling precursor to [today's "blood and soil" nationalism](#), the use of the word "homeland" was off-key, out of tune with the nation's ethos. Until the Bush administration started using it, no president had referred to America as a "homeland;" they called it a republic or the nation. Even some conservative boosters of Bush's policies believed it was un-American.

One was the Wall Street Journal's Peggy Noonan. "The name Homeland Security grates on a lot of people, understandably," she [wrote](#). "Homeland isn't really an American word; it's not something we used to say or say now. It has a vaguely Teutonic ring — *We must help ze Fuehrer protect ze Homeland!*" Noonan quoted a friend as saying, "I think it's creepy, in a Nazi-resonating way, any time this sort of home-and-hearth language is used by people who are essentially police."

That person, whoever it was, spoke for a lot of us at the time. The very name of this vast new police agency with nearly unlimited power gave many of us the creeps. And that's because if you know anything about history, when a state builds a massive police apparatus, it's almost certain that it will eventually be used against the political enemies of whoever is in power.

DHS consolidated a whole bunch of agencies under its auspices, from the Coast Guard to Federal Emergency Management Agency, but its most consequential new department was the U.S. Immigration and Customs Enforcement. ICE's creation seemed redundant at the time; we already had Immigration and Naturalization Service, the Customs Service and the Border Patrol, which were combined into the Customs and Border Protection. But the administration and Congress felt that another agency, one with even more power, was needed to protect the "homeland." As we've seen, that mandate can be defined any way an administration wants.

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DHS wasn't the only new law enforcement institution created then. As the Washington Post's Warren P. Strobel [reported](#), there were also the Joint Terrorism Task Forces, which brought together DHS, the FBI, and state and local police forces from all over the country, that have been deployed constantly for the past 25 years. Then there was the Office of the Director of National Security, thought to be a fairly benign agency that would simply coordinate among the intelligence agencies. But as we saw recently during the tenure of former director Tulsi Gabbard, it has been used to meddle with state election responsibilities and chase conspiracy theories. And there were more, scattered all over the government, such as the National Counterterrorism Center and the Justice Department's National Security Division. It was overkill, to say the least. But a quarter of a century later, even as the threat of Islamic terrorism has faded, the apparatus created in the years after Sept. 11 has become more powerful than ever — and was just given a budget that exceeds that of the entire U.S. Marine Corps.

From the [surveillance of Americans and allies](#) to [attacks on the press](#), the temptation to skirt civil liberties in the name of protecting "the homeland" has led all the administrations since Sept. 11 to use these new powers to target American citizens to one degree or another. But none have exploited its powers more than Trump, especially in his second term, proving what building such a massive police agency can do in the hands of someone intending to use it for illegal and unconstitutional purposes.

Living up to its "teutonic" name, the DHS under this administration has initiated a [national dragnet](#) to

harass, brutalize, abduct and deport undocumented workers and foreigners of all kinds. Deploying masked, armed, unidentifiable personnel, the department resembles nothing so much as a street gang terrorising American communities. People, including American citizens, have been down in the street, and so far, the courts have been glacially slow to intervene while the Congress is paralyzed by the Republican majority's worship of Trump.

The administration has already officially set forth the next phase of this "homeland" police state. The National Security Presidential Memorandum-7 (NSPM-7), titled "[Countering Domestic Terrorism and Organized Political Violence](#)," directs the Justice Department, DHS and the Treasury to investigate Americans suspected of "left-wing extremism, anarchy, and anti-fascism." This is defined as anti-Americanism, anti-capitalism, anti-Christianity and possessing so-called radical views on migration, race and gender. The hysterical way that everyone from Trump to GOP members of Congress to MAGA influencers are calling the mainstream Democratic Party evil — and bleating "Socialist! Communist! Marxist!" at every turn — makes it clear: This initiative is nothing more than a directive to go after the GOP's political opposition.

Many knew from the beginning that we would end up here. If they build it, they will use it, and eventually they will turn it on their own people. 25 years later, that's exactly what is happening.

Read more

about the Department of Homeland Security

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